Affidavit
Exhibit A

ZOOM Meeting Transcript
6-January-2025

Peter Daszak (PD), Stephen Shapiro (SS), and Ellen Shedlarz (ES)

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PD: Thanks, Riza. Great.

SS: And I really genuinely apologize. I thought my email was clear when I said we should.

PD: Yeah, I had no idea. Sorry, guys. Anyway...

SS: I guess in the modern age, personal, doesn't mean, personal.

PD: Sorry, mate. Well, I mean, in any case, I have a doctor's appointment today. I'm going in for a gastroscopy tomorrow.

ES: We have no volume. Wait a second.

PD: Okay. Yep, can you hear me?

ES: Yes.

PD: Great. No, I've got a doctor's appointment. I'm going in for a gastroscopy tomorrow. I don't think it's a big deal or anything. Just, you know, check up. And it's snowing here, so it would have been a bad day.

SS: Well, maybe a good day to go skiing, but, um...

PD: No.

SS: Starting off the new year with difficult news to deliver to you, Peter, and it was news that I would prefer to deliver to you face to face. The board has made a decision to terminate your employment. That will be effective today, now. And it's news that I hate to deliver to you. I know Ellen hates to deliver to you, but, um, obviously, we found it necessary. The decision provided was a loss of confidence in your leadership of the organization. In terms of details, a, um, separation agreement is in formation as we speak. It'll get to you in a day or two, and it'll outline a separation package, which we will ask you to sign in exchange for a waiver of any claims, et cetera, the standard kind of language that you can imagine. Um, Ellen can give you some of the details of what's in the package, and, um, we can answer some questions, but probably not most.

PD: Yeah, I understand.

SS: Yeah. So I'm sorry for having to do this this way, but, um, it had to be done. Okay, go ahead, Ellen.

ES: Okay, so what we thought was best was to pay heavily, so you don't get taxed, pay for six months of COBRA for the entire family, so you don't have to worry about that EcoHealth will pay for that. We came up with a number of doing some research of $70,000 for relocation against receipts, if needed, because you have talked about moving back to Europe, and that's not an inexpensive thing, so there's $70,000 in that for that. We have an hourly rate of $300 if we need at our discretion to call you in to help close out something, or to fix something, or if it's...

SS: Information in your possession.

ES: Yeah, or information in your possession. Um, one of the reasons we wanted to do in person was that we really need to get your card key, and all your, um, keys and access and all that stuff.

SS: Yeah, the primary reason to do it in person is it's more humane, of course.

ES: Yes.

SS: Yes.

ES: Yes, absolutely.

SS: And we care for you.

ES: So... Um, and let's see, what else? Uh, we need to get your phone. We will take it for a day.

SS: Step back very quickly.

ES: Okay, we will take it for a day, and we will just duplicate the information, and you'll get it back the next day. The lawyers said that they have a way to do that. So we will do that. If you prefer to go today to buy a new phone and put, transfer all your data over there so you don't go a day without it, we'll pay for the phone. So that's totally up to you. Uh… we were gonna ask you to take, you know, pack up your office, um, as best as you could for your personal stuff. Um, but what I think the next step will be, Aleksei has no idea this is happening. That's why we asked him not to join us. We will talk to him afterwards, but he will help you do all that. So, you and him can work that out together. Let me just see if I've missed anything. I don't think I have. We've got the big three things, so.

PD: Well, the thing. The thing that you haven't mentioned is Severance.

ES: Um... If you read the severance policy, if you're just dismissed because you don't get service, do you?

PD: Ellen, let me just say a couple of things, right? Look, I've...

SS: Yeah, go ahead, Peter, I'm sorry.

PD: I've given 25 years of my life to this organization. I took over as president after Mary Pearl abruptly left, left you all in the lurch, and I stepped in. Bob told me we were probably gonna have to close it down, and I said, I don't want to do that, and I fought hard, and we turned it round, in the middle of the great recession. Um, There's never been a single issue of, you know, allegations of anything throughout that time until all this political stuff. And this last 5 years has taken an incredible toll. You can only, I'm sure you know how hard it's been. It's hard for all of us, but it's been particularly hard for me. Um, it's, uh, you know, it's been very abusive. The stuff we've been put through by the political side of it. Um, my employment prospects, because of all this, uh, very, very slim to zero. And um, you know, I've got a year, a daughter in college, I've got a mortgage, The mortgage payment's got to be made. Um, The college fees have got to be paid, or what do we do? I mean, we, it doesn't get sold by, um, relocation cost, all those things. This is throwing me out on the street. Because there is no plan B. I don't know who told you that I was thinking of moving back to Europe, but that's not true. I've got no… I haven't even got a passport other than the US passport. Um, I have no, um, no plan B. There are no job offers. I've not looked, I've not asked because I'm committed to making this work. Um, And I was really, I mean, I, you know, I understand when I heard that the, that you've got to, um, that you're gonna, you've decided to try to separate the lawyers for the debarment. I understand what the strategy is. I don't know if it'll work, I get it. But, Why not let me go and pay the severance and… and treat me in a way that reflects the 25 years of service. Um, because this is just impossible. We have no savings. We have no options. Um, and uh, I just can't believe you would do that. I mean, all of our staff have been, um, treated so generously and we have a policy that treats them generously and with fairness. And, uh, I, you know, I'm, I'm just pleading with you for compassion on this. Because we have no other options.

SS: It's a difficult one, Peter, and at the moment, this is the best we can do. It really is.

PD: Um, But, Stephen, if this is a strategy to preserve the organization against debarment. Um, you've got 2 grants remaining with the federal government. That would come back. They're both, I'm PI on both them. Jon Epstein has one year left on one grant. That's not enough to pay. Sorry, he's already halfway out the door. Up to Colombia. Those other grants don't come back. They weren't even awarded. They're in the process they were scored well and in the process of trying to be awarded. So, I get it in terms of trying to preserve, um, The, um, image of EcoHealth

Alliance, having not been debarred as an organization, but really to, What you're essentially doing is not only throwing me out and saying, oh, it's all his fault, and um, and my reputation then being diminished even more, but you're also not even paying me the severance that would fairly come. I mean, please, I don't want to be in a fight with the EcoHealth Alliance. I have no, I have huge, 25 years, majority of my career, given to this organization, please, please. Give me the benefit of that severance package because without it, I am lost.

SS: All we can say is it's not in the best interest of EcoHealth at this, at this point in time, and we fully understand what you say, and we are not happy about the situation, trust us. This gives me and Ellen, as you know, and your other colleagues on the board, this gives us no pleasure.

PD: Well, what about, what about an option whereby you pay me, uh, um, some sort of, I don't know. Um. Uh. I guess that's what it's a severance. It's an ability to survive. I have no capacity for...

SS: You know that the way the severance policy is written, severance is provided in the event of downsizing or loss of funding, and this is for neither of those reasons. So, um, that's not over the organization. That's not what we're talking about here. So this is a performance issue. And that's, that's...

PD: I've raised, since the proposal for development. I raised over a quarter of a million dollars personally. I've basically covered my salary. This year, we've got 125 K pledged from Samuel Freeman Trust. These are all given to us because I've gone out, done the outreach. So I'm covering my own salary, bring it into the organization. Um, And now I'm out on the street. I mean, please. Please rethink that, because I don't know what I'm gonna do.

SS: I mean, we, the best I can say is we'll talk to both lawyers and board members about it, but we have had extensive discussion. And it's not been easy to get to this point. You can appreciate the position we're in, I know. Um...

PD: Well, I don't... It's a choice, Stephen. You know, it making it look like I did something wrong. Um, It's the worst of the cruelest of ironies. You know how hard I fought. And, you know, when I when I get up and do my, um, When I got up and did my, um, public hearing. That was, With all the best advice of EcoHealth Alliance's lawyers and our publicity consultants, who you guys hired to support me. And I did my bit. And, you know, the allegations that, um, have not been, um, of not being honest or whatever they are. They're allegations, they're not proven. You know this, you know it's not true. I mean, come on guys, please.

SS: Yeah, like I said, this is the best we can do at this time. There's no question we continue to talk about it and revisit it, and we're in discussion with lawyers all the time, but we're in a very difficult situation, and at this point, this is the best we can do. If that changes, you can rest assured that we will do better. But at this point, I hate to say this, but this is what we can do.

PD: Well, I know you can pay the severance. I mean, you have the money to pay. I brought the money in, myself.

SS: Yeah. I have no further ability to discuss it or answer it or change the decision, unfortunately.

PD: Well, you do, you have complete power and authority to do that, as you know, and Stephen, I'm just pleading for you. Please treat me in a way that's has some compassion for what I've been going through. Five years of hell.

SS: we understand it? We know it has been. We do know it. And I wish I could reach a different... I wish the board could reach a different decision.

PD: I'm sure the board would, if you spoke to him about it in a more... Give me a chance to talk to them and plead my case.

SS: Yeah, that's not likely to happen. Um That's all I can tell you, at this point. Um, the communication can come through a representative or from you later on after you get your paperwork. Um, and like I said, if things were to change, I'm sure the Board would be willing to relook at the situation, but given the circumstances and the advice and the situation, this is really our position at this point. I hate to say it again and again, but that's all we can do. I don't like it. But it is what we can do. Um, Ellen, that you've gone through.

ES: No, it's just a very, very difficult decision, and one that we didn't want to make, but we have to make. And we're very sympathetic to it, as Steven said, We'll certainly go back and entertain it with the lawyers in the Board. Um... but I don't know that anything's going to change at this point.

PD: I don't know why you have to... fire me without giving the severance. I don't understand why you have to do that.

ES: Well, the policy has two reasons to give self, downsizing, and loss of funding. Those are the only two reasons people gets out.

'sev': severance package

PD: Well, we have lost the funding, haven't we?

ES: And no, no, no, no, no. Um...

SS: That's not the reason for this for the termination.

ES: The reason for the termination is lack of confidence. And.. That's what we have to follow.

PD: So a lack of confidence then cost me $380,000. An inability to survive. Inability to pay my mortgage in my kids' college. I mean, this is devastating, Ellen. It really is that simple. I mean, another way. I, I, I, I would go so quietly and respectfully and supportively, um, and I understand it. Um, But that's the one thing that I desperately need to be assured of that I've got that year. It's going to take me a long time to get another job at this rate. Given, you know, the reputational damage. Um, that severance gives me a year to be able to get a job. Um, and to be able to survive. I mean, we're doomed otherwise. Please, please, I'm really, I mean, have you ever heard me like this?

SS: Anyway, we hear you. I, there's.. we can't add anything more to the conversation at this point. We understand the situation. Um, the best we can do.

PD: My wife has just come out of hospital. We still don't know what caused that. She's got, um, she's still not been diagnosed, mini stroke. Um, This is just brutal. An unnecessary, Stephen. Ellen, please. Please go back to the board and talk to them, tell him that I'm desperate. You know, of the one person in the organization who's… who's been hit the hardest by this and is most unlikely to get a job, it's me. Everyone else is… is going to be fine. They've got, you know, we know that the staff who've been laid off have got jobs. They've been snapped up. It's not going to happen with me. I don't have enough money in a retirement to retire. Um, It's, it's, I'm 59 years old. It's the worst time to be thrown out, and it's one thing to be laid off with a year's capacity or cushion to try and get set up, but this just gives me nothing.

SS: We hear you.

ES: We will go back and have a discussion.

PD: Please.

SS: Convey your sentiments. UM… obviously, the lawyers involved, as well as the board. Everybody will be told what you said. So that's the best we can do. Like I said, we hate this situation. I'm sure not as much as you do, but...

PD: No, it's not a matter of hate in a situation. It's desperation. I mean, um, you know, this is doom. I mean, no no job, no backup plan, no savings, no pension, and a mortgage and...

SS: EcoHealth has a pension.

PD: Yeah, and if I... And if I retire 67, I'll be, I'll get, you know, A fraction of the salary I'm getting now, but God, yeah. I have no capacity right now, it's not enough to survive on. And a mortgage and a kid in college. It's unnecessary… and, you know, please talk to everybody and tell them what I'm saying. I mean, I can send you the details in an email.

SS: Yeah, no, no, we understand.

ES: No, you don't need to. We understand exactly what you're saying, and we'll go back and express your sentiments. Absolutely.

PD: Ellen, please support it. I mean, you of all people, you know how it is. I'm not, I'm not a, um, I'm a scientist who's had a, You know, you paid me well, but we don't have savings. We don't have commercial. We don't have stock accounts, and um, and, um, you know, and side gigs and all this stuff. Is just, this is it. This is all I've ever had. Um, and, and, you know, the, I, this isn't an emotional um, issue that I'm clinging on to the job. I understand what you're doing. This is pure… desperation because of the where this will leave me financially is awful. It's possibly, um, I mean, I just don't know what we're going to do. I have no idea. I mean, we have to put the house on the market. There's no moving back to Europe, have no contacts in Europe. I've been here for 27, 28 years. Um, It's just not, our kids are in college. Here in the US, we're American. Um, and I'm unemployable because of what… what we've gone through. And um, you know, it's, would, I'm still, I've lawsuits. What are you gonna do about lawsuits?

SS: We're defending the losses.

PD: But what happens if people start? I mean, we're personally sued in some of those things? We don't have money for lawyers.

SS: We're, the way this looks at the moment we're defending the lawsuits. Hopefully, they'll be shut down because we just keep winning them. You know that there was just another witness last week. I think, uh, Aleksei told us. So we're 9 out of 10. Peter, I'm gonna say, I hate to say this. Let me, let's, we're gonna hang up, because it can only get...

PD: I'm not gonna... I'm not gonna... It's not gonna get worse. I have no animosity at all, Stephen. I have no, I have no issues and um, but I'm just, I'm just, I'm just pleading with you to help me. Because it's a generous package in terms of what you're suggesting, but I really thought the severance would be there with it. Because without that, I am utterly doomed. And... I just don't know what to do.

SS: Okay, like I said, well, take your sentiments back to all concerned, and, um, and just relay them and see where it goes. Ah… at the moment, this is really what I'm able and authorized to do. So, are you guys clear on little details?

ES: Well, I think he was gonna go to a store and buy a new phone, and have the data transferred, and then send us the one that you, that is the EcoHealth phone.

SS: Yeah, we'll buy you a new phone, of course. And just, I'm sure your contacts and all that stuff are in the cloud. You can just copy that down. We will not turn over stuff from your phone unless absolutely required to do so. I mean, understand that. We're not here to give it away, but we want to be able to, if in fact, that happens.

ES: We also need to get the keys, and, um, passes, and things like that.

SS: Whatever you have.

ES: Yeah, whatever you have, that gives you access to the office. Um, your access to the computers and systems will be turned off, just so you know. Um, it's...

PD: Why would you do that to me? Ellen, I've got so much stuff still going on. I mean, we've got all these papers to write. We've got all this money to come in. I mean, I've just got a positive feedback from more foundation for a potential $300,000 grant. Why cut us off from that? I can help bring that in. To the organization, not to me. Um, I, It's, uh, I don't think the, the suspension development official's gonna believe that, um, you somehow saw the light and realized I was a bad actor, um, so therefore they're gonna, and, and even if you do, avoid debarment, you don't get the grants that aren't, that I'm PI if you, if you fire me. Um, And I just... cutting me off from the scientific work is even worse. For you and for me. With this isn't a corporate place, Ellen, like, um, you know, uh, where, someone's

gonna go and do nefarious stuff. This is just scientists trying to get things done. It's to my benefit and your benefit to continue access. I, you know, to, to get all the, um, back up so I can do carry on doing the science.

ES: Well, as I said, we did have a hourly rate, if there are things that are going on that we need your help and, you know, bringing in, or, or including at the hourly rate was $300. Um, we expected it to be sort of 5 hours a month or something like that, but...

SS: No, it was more than that, but we don't know. We have no idea. We have no way to know. If we even need it, or, frankly, if the lawyers will even let us.

PD: The lawyers work for you, and you can tell them what you want.

SS: No, no, no. I mean, there are things that are... That you've probably read the settlement agreement, that the boilerplate that comes from the government, there are things in there about what we can do and can't do, that comes from the government, that boilerplate. And so some of that stuff is tricky to get around.

PD: But we haven't got a settlement with them yet.

SS: Well, you know that we're in the process of closing one, so that's what we're about. Anyway, I'm not gonna, I'm not gonna get into that. We hear you, we're gonna convey your request and your sentiments, and we appreciate the… understanding from your side how difficult this is for us to do.

PD: It's a quarter of a century of service to EcoHealth. Wildlife Trust and EcoHealth. Quarter of a century. I started work in 2001. Uh, or 2000. It's, it's just, um, incredible it's come to this.

SS: I agree with you. It isn't great.

PD: Don't let it happen. I mean, it's utterly in your control. Um, Anyway, look, I'm prepared to be the full guy. I'm prepared to, to, um, to, you know, die on my sword for the sake of the organization. But what I really, really need is that severance, because I cannot survive without it. We are out on the street. Probably have to pull my door out of college. We do not have savings. We do not have and we do have a mortgage. Um, And this was not what I expected to happen. And even if it was, we couldn't have saved enough to survive. We don't have that capacity.

SS: Um, Yeah, all right, you, you, you, you, it's clear what you're saying. We understand it. We will convey it.

PD: Okay.

SS: Best I can best I can promise.

PD: All right, I appreciate that.

SS: All right, obviously, well, you know, there'll be some back and forth, and, um, and we're sorry for this.

PD: Okay.

SS: Turn of events.

ES: Very sorry.

SS: All right, I'm gonna hang up. I appreciate it. Thanks.